

		under the FAA, arbitration “is a matter of consent, not coercion.” (<i>Lamps Plus, Inc. v. Varela</i> (2019) 587 U.S. 176, 183-184.) There is a fundamental difference “between class arbitration and the individualized form of arbitration envisioned by the FAA.” (<i>Id.</i> at 184.) Class arbitration ““sacrifices the principal advantage of arbitration—its informality—and makes the process slower, more costly, and more likely to generate procedural morass than final judgment.” (<i>Id.</i> at 185.) “Class arbitration not only ‘introduce[s] new risks and costs for both sides,’ . . . it also raises serious due process concerns by adjudicating the rights of absent members of the plaintiff class—again, with only limited judicial review.” (<i>Id.</i>) “[C]ourts may not infer consent to participate in class arbitration absent an affirmative ‘contractual basis for concluding that the party <i>agreed</i> to do so.’” (<i>Id.</i>) “Silence is not enough; the ‘FAA requires more.’” (<i>Id.</i>) “[C]lass arbitration, to the extent it is manufactured by [state law] rather than consen[t], is inconsistent with the FAA.” (<i>Id.</i> at 187.) The court finds that the subject arbitration agreement does not authorize class arbitration, and therefore, Plaintiff’s class claims cannot be arbitrated. If “parties did not agree to authorize class arbitration in their arbitration agreement,” a court should enter an “order dismissing class action allegations from the complaint.” (<i>Kinecta Alternative Fin. Sols., Inc. v. Superior Ct.</i> (2012) 205 Cal. App. 4th 506, 510–11.) Thus, the court DISMISSES Plaintiff’s class claims. Both the Federal Arbitration Act and California law provide for a stay of proceedings pending arbitration. (9 U.S.C. §3; CCP §1281.4.) As such, the court stays the action pending completion of arbitration and sets an ADR status conference for February 18, 2027 at 9:00 a.m. Defendant is ordered to give notice of this ruling.
14	30-2026-01555500 Hek vs. La Mirada Post Acute LLC	Plaintiff Humphrey Van Hek’s (“Plaintiff”) Motion to Compel Deposition of the Person Most Knowledgeable (“PMK”) of Defendant La Mirada Post Acute, LLC (“Defendant”) and for Production of Documents is GRANTED IN PART AND DENIED IN PART. Plaintiff seeks an order compelling the deposition of the Person Most Knowledgeable (“PMK”) of Defendant and the

		production of documents responsive to the requests in the deposition notice after Defendant did not appear for the May 15, 2026 noticed deposition. While the date was originally mutually agreeable to the parties' counsel, Defendant responded to Plaintiff's deposition notice with timely objections and stated that Defendant no longer agreed to produce a witness for the topics in the deposition notice. Instead, Defendant requested that the parties meet and confer and reach an agreement regarding the scope of testimony, appropriate limitations, applicable privacy and confidentiality protections, the need for a protective order or court guidance, the deposition format, and a mutually convenient deposition date. Both parties attempted to meet and confer, with Plaintiff proposing alternative dates and Defendant asking for an informal discovery conference, but the parties could not agree on how to proceed. The deposition topics and document requests in the deposition notice concern the identity and nature of involvement of each of the Defendants in the operations of the subject skilled nursing facility, the admissions process, the identification of witnesses, Defendant's compliance with applicable laws and licensing, Defendant's facility assessment, Defendant's staffing scheduling and process, and discovery related to Defendant's potential defenses based on arbitration agreements with class members and the reasoning behind their staffing procedure. Plaintiff contends that the deposition topics and document requests all concern class certification issues, including typicality, commonality and numerosity regarding the admissions process and scheduling of staff at the subject facility, as well as issues relating to alter ego liability among Defendants. Defendant's primary objections to the subject deposition notice are that the topics and document requests are overbroad, burdensome, and premature. However, Defendant did not move for a protective order, file a motion to quash, or seek a stay of discovery. "Although parties are free to communicate with potential class members before class certification, when they seek to enlist the aid of the court in doing so, it is appropriate for the court to consider 'the possibility of abuses in class-action litigation.'" (<i>Parris v. Superior Ct.</i> (2003) 109 Cal. App. 4th 285, 300.)
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		Courts should “identify any potential abuses of the class action procedure that may be created if the discovery is permitted, and weigh the danger of such abuses against the rights of the parties under the circumstances.” (<i>Id.</i> at 301.) It would be an abuse of a discretion for a court to allow precertification discovery when “the actual or potential abuse of the class action procedure outweighs the potential benefits that might be gained.” (<i>CVS Pharmacy, Inc. v. Superior Ct.</i> (2015) 241 Cal. App. 4th 300, 313.) On the other hand, “[i]t is an abuse of discretion for a trial court to determine class certification questions before the parties have an opportunity to conduct discovery and present evidence on certification issues.” (<i>Hendershot v. Ready to Roll Transportation, Inc.</i> (2014) 228 Cal. App. 4th 1213, 1226.) Further, “California law permits the use of discovery to get information necessary to plead a cause of action.” (<i>Union Mut. Life Ins. Co. v. Superior Ct.</i> (1978) 80 Cal. App. 3d 1, 11.) “[I]t is well established that relevancy of the subject matter does not depend upon a legally sufficient pleading, nor is it restricted to the issues formally raised in the pleadings.” (<i>Id.</i>) “Relevancy of the subject matter is determined by the potential as well as actual issues in the case[.]” (<i>Id.</i>) A party seeking discovery must identify a “particularized need for the documents at issue . . . or [] show how they would be relevant to the complaint or calculated to lead to the discovery of relevant evidence.” (<i>Terminals Equip. Co. v. City & Cnty. of San Francisco</i> (1990) 221 Cal. App. 3d 234, 247.) Here, the court finds that there is merit to some of Defendant’s objections to the deposition notice: • Topic 1 and Document Request No. 13 are overbroad in that they seek every agreement between Defendant and the other defendants without establishing the relevance of these broad categories of agreements to the claims at issue or the alter ego theory of liability. • Topics 4 and 5 are premature as they concern a potential defense that may be asserted by Defendant, but as there is a demurrer and motion to strike pending, there has been no answer filed by Defendant to establish such defenses. • Document Request No. 14 is overbroad in that it seeks every communication and document between Defendants that concern staffing, without establishing that such documents are relevant to the issue of understaffing at the facility.
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		Plaintiff has not demonstrated that these overly broad topics and document requests are relevant or are reasonably calculated to lead to the discovery of relevant evidence. Accordingly, the Motion is DENIED as to these Topics and Document Requests. IT IS ORDERED THAT, within ten (10) days of this ruling, the parties shall further meet and confer to discuss how these Topics and Document Requests may be narrowed to only information and documents relevant to Plaintiff's claims or reasonably calculated to lead to the discovery of admissible evidence regarding Plaintiff's claims in this action. A majority of the deposition topics and document requests are within the scope of the claims in this action: • Topic 2 concerns the admissions process for residents at the subject facility, which Plaintiff contends involved misrepresentations to putative class members. • Topic 3 concerns Defendant's compliance with applicable laws that are at issue in this action. • Topics 6-10 concerns Defendant's process for staffing the subject facility, which Plaintiff contends was understaffed. • Topics 11-12 concern the number of residents at the facility during the relevant time period, and the number who signed arbitration agreements. • Document Request Nos. 1-6, and 11-12 seek documents that reflect Defendant's staffing process. • Document Request Nos. 7-8 and 10 seek documents relating to Defendant's admission process for admitting residents at the facility. • Document Request No. 9 seeks arbitration agreements between Defendant and putative class members. • Document Request Nos. 15 and 16 seek documents relating to Defendant's license to operate the facility. The court finds that these Topics and Document Requests are well within the scope of the claims in this action and Defendant has provided no authority preventing Plaintiff from asserting this discovery, even at this early stage of litigation. Thus, the Motion is GRANTED as to these Topics and Document Requests. IT IS ORDERED THAT within forty (40) days of this ruling, Defendant shall produce a PMK for deposition on Topic Nos. 2-3, 6-12 and produce responsive documents to Document
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		Request Nos. 1-12 to Plaintiff. This deposition must occur on a mutually agreeable date within the forty (40) day period. Plaintiff's request for monetary sanctions is DENIED. Both parties failed to adequately meet and confer, and Defendant acted with substantial justification in opposing this Motion and asserting its objections. Plaintiff is ordered to give notice of this ruling to Defendants.
15	30-2026-01555557 Hernandez vs. Bellflower Skilled, LLC	Plaintiff Maria Elena Hernandez's ("Plaintiff") Motion to Compel the Deposition of the Person Most Knowledgeable ("PMK") of Defendant Bellflower Skilled, LLC ("Defendant" or "Bellflower"), and for Production of Documents is GRANTED IN PART as to Request for Production Nos. 2-6 and DENIED IN PART as to Request for Production No. 14. IT IS ORDERED THAT within forty (40) days of this ruling, Defendant shall produce responsive documents to Request for Production Nos. 2-6 to Plaintiff. As a threshold matter, after this Motion was filed, Defendant produced a PMK for deposition as well as responsive documents to some of the Requests for Production, so Plaintiff has narrowed the Motion to Compel only to Document Request Nos. 2-6 and 14. Request for Production Nos. 2-6 seek various forms, reports, facility assessments, and assignment sheets and schedules for the relevant time period, which are all relevant to adequacy of staffing at the facility. Plaintiff contends that these documents go to the commonality element of class certification. The court finds that these document requests are well within the scope of the claims in this action and Defendant has provided no authority preventing Plaintiff from asserting this discovery, even at this early stage of litigation. Thus, the Motion is GRANTED as to these Requests for Production. Request for Production No. 14 asks for "all DOCUMENTS exchanged between [Bellflower] and any named defendant in this action, or anyone acting on their behalf, during the time period of February 19, 2022, through February 19, 2026 which references, in whatsoever manner, the staffing of DIRECT CAREGIVERS in the FACILITY." Plaintiff contends that this document request seeks evidence to support an alter ego theory of liability. However, the request is overbroad as it seeks all